

Queensland Industrial Relations Commission
Cory Shepherd v Workers' Compensation Regulator

Matter – WC/2024/227

The Respondent's Outlines of Evidence

1. Ms Chloe Taylor

Ms Taylor was the Switchboard Manager, Logan Hospital, and the Appellant's direct line manager, in an acting capacity, from around April 2023 to 1 July 2024 supervising rostering, attendance and shifts.

This witness will give the following evidence:

- Denies maintaining an erratic physical presence or imposing unassessed unilateral directives without consultation, and denies any managerial hostility. *(SOFAC para 11)*
- That on 6 June 2023 Ms Taylor found an entry in the switchboard team's shared Communication Book that she considered and removed it without knowing at the time who had written it. *(SOFAC para 12(a))*
 - Earlier that same day she had sent the whole team, including the Appellant, a reminder email about the book's proper use. When the Appellant arrived for his afternoon shift and learned the entry had been removed, he questioned her closely and loudly in front of other switchboard staff. *(SOFAC para 12(c)-(d))*
 - She asked him to stop talking over her and offered to discuss it privately, or with Ms Reese, instead. She reported the incident to Ms Reese by email that day. *(SOFAC para 12(b))*
- That the Appellant texted Ms Taylor on or about 4 April 2023 to say he expected to earn around \$1,500 less than his colleagues over the upcoming fortnight, which covered the Easter long weekend and its four public holidays. *(SOFAC para 19(a)-(b))*
 - Ms Taylor's evidence is that he was comparing himself to full-time colleagues, whose shifts that fortnight happened, through the ordinary rotation, to fall so as to include most of the public holidays and ten shifts including nights, while he was then rostered 0.8 FTE for eight shifts. *(SOFAC para 19(c))*
 - Although not required to, she offered him an additional weekend shift, so in the result he worked the Saturday and Sunday public holidays, the Monday public holiday, five weekday penalty shifts and two ordinary day shifts. *(SOFAC para 19(c)-(d))*
- Confirms she sent the Appellant an email on 14 November 2023 to discuss compliance with shift and break time procedures, arranging a meeting for 15 November 2023. *(SOFAC para 13(f))*
- Confirms the AVAC correspondence of 3, 21 and 28 May 2024, in which she was involved in emails about correcting the Appellant's shift payments. *(SOFAC para 21(a)-(c))*

- Confirms the seven-hour break between shifts on 17-18 March 2024 was the result of human error, and was not intentional or repeated. *(SOFAC para 22(a))*
- That All switchboard staff, including the Appellant, had signed an agreement permitting an eight-hour, rather than ten-hour, break between shifts. Ms Taylor sought advice from HR, who confirmed the agreement was on file and continued to apply. *(SOFAC para 22(e))*
- Confirms that the Appellant could refuse shifts at any time. *(SOFAC para 22(b))*
- That Ms Taylor's confirms she was told the Appellant had been asked to retract the email of 15 May 2024 and had refused. Acting on HR's advice, she then removed the email from the shared switchboard inbox herself. *(SOFAC para 16(b)(v)-(vii))*
- Confirms she emailed the Appellant at 12:08pm on 14 May 2024 raising the issues of his difficulty attending his rostered shifts between 13 and 15 May 2024, and his failure to follow the on-call notification process. *(SOFAC para 16(b)(i)-(ii))*
- Confirms she then raised this as an issue with Ms Reese at 1:20pm on 15 May 2024. *(SOFAC para 16(b)(iv))*
- Confirms the Appellant sent her a text message at 5:03pm saying he was "just putting his hand up" about the union delegate role, he did not request her assistance, but she nonetheless provided him with advice and support, and gave him delegate information. *(SOFAC para 17(a), (c)-(d))*

2. Ms Tammy Reese

Ms Tanny Reese was the Director, Health Informatics and Medical Services (HIMS), Ms Taylor's manager and, through that reporting line, the Appellant's second-line manager from around April 2023 to 1 July 2024. She had direct dealings with the Appellant on a number of occasions when matters were escalated to her from Ms Taylor.

This witness will give the following evidence:

- That she received Ms Taylor's email on 6 June 2023 reporting that she had removed an entry from the Communication Book, and that Ms Taylor had addressed it with the Appellant, who was unhappy about it. She never saw the entry itself. *(SOFAC para 12(b))*
- That on 7 August 2023 the Appellant emailed Ms Reese, Ms Taylor, Ms Reese's manager Tracy Smith, and a co-worker, raising concerns about rostering fairness, alleged gossiping and discrimination, and a claimed breach of the enterprise agreement's roster-display requirements. *(SOFAC para 13(a))*
 - Ms Reese responded and met with him on 10 August 2023. As part of that response she also went back through eight months of his rostered and worked shifts to check whether he had in fact been rostered fairly and given a genuine opportunity to pick up additional shifts. *(SOFAC para 13(c))*
 - She followed up in writing on 29 August 2023, addressing each of the matters he had raised, including the timing of roster publication his interest in additional or permanent hours. *(SOFAC para 13(d))*

- She advised him of his option to lodge a formal grievance with HR, providing the relevant policy and EAS information. *(SOFAC para 13(d))*
- Confirms she sent the Appellant a further email on 8 September 2023, continuing to address the issues he had raised. *(SOFAC para 13(e))*
 - He did not take that further at the time. Instead, he applied for and was granted an increase to full-time hours.
- That the Appellant sent an email at 1:15pm on 15 May 2024 from his personal address, copied to the generic Switchboard account, around eighteen other staff and Logan HR, asking that Ms Taylor's office hours be shared with the whole department and referring to "inconsistency" in her arrival and departure times. *(SOFAC para 16(b)(iii))*
 - Ms Reese's evidence is that, read in substance, this amounted to an accusation that Ms Taylor was not working her rostered hours, sent in a way that gave Ms Taylor no chance to respond before the rest of the department saw it. *(SOFAC para 16(b)(v))*
 - After taking HR's advice, Ms Reese emailed the Appellant later that day at 4:12pm, without her electronic signature, then again in materially the same terms at 6:23pm once she noticed the omission, asking him to retract the email, on the basis it did not reflect the department's stated values and could have been raised with Ms Taylor or Ms Reese directly rather than sent to the whole team. *(SOFAC para 16(b)(v))*
 - The Appellant declined to retract it and replied at length disputing that characterization. *(SOFAC para 16(b)(vi))*
 - The email was ultimately removed from the shared inbox by Ms Taylor. *(SOFAC para 16(b)(vii))*
 - Ms Reese was not aware the Appellant had lodged a public interest disclosure at the time she sent this email *(SOFAC para 16(a))*
 - The document she received from HR (Elise McGinley) on 16 May 2024 at 11:43am was not in fact a PID notification, but a forwarded copy of a complaint the Appellant had separately made to the Ethical Standards Unit about Ms Taylor, provided to her for information only. *(SOFAC para 16(a))*
- That her understanding, through Ms Taylor, was that HR had confirmed the Appellant's earlier eight-hour break agreement continued to apply after he moved to full-time employment, and that this was raised by the Appellant around the same time as a separate concern about travel time to and from work not being included in that agreement. *(SOFAC para 22(e))*
- Confirms that the Appellant could refuse shifts at any time. *(SOFAC para 22(b))*

3. Ms Kimberley Wright

Ms Kimberly Wight was Director, Client Services and Performance, Payroll Transactional Services. She has no personal dealings with the Appellant. Her evidence comes from her oversight of the payroll function and payroll's records concerning his employment and pay.

This witness will give the following evidence:

- General position on the Appellant's pay queries. Payroll's review of the pay issues the Appellant raised across 2023 and 2024 shows they were investigated and, where a discrepancy or error was found, corrected. There are no outstanding underpayments owed to him. (*SOFAC para 20(a)-(c), (f)*)
- The public holiday allowance versus "public holiday not required".
 - Ms Wright explains the distinction that an employee on a straight Monday-to-Friday roster who is not required to work a public holiday is simply paid "public holiday not required" within their ordinary contracted hours, whereas a continuous shift worker whose roster has been varied around a public holiday can instead be paid a discretionary public holiday allowance (an additional 7.6-hour payment, outside ordinary hours), which must be approved and submitted by the line manager on an AVAC. (*SOFAC para 20(d)*)
 - The Appellant was not separately entitled to a "public holiday not worked" amount on top of whichever of these two payments was appropriate to his circumstances. (*SOFAC para 20(d)*)
- That the Appellant signed an "eight-hour shift agreement" on 17 June 2020, a Metro South-specific document, made under clause 15.1 of the *Hospital and Health Services General Employee Award State 2015*, reducing his break between shifts from ten hours to eight for more than one break period, with no end date, so that it continues to apply indefinitely unless replaced. (*SOFAC para 22(e)*)
 - She confirms that payroll processes and holds these agreements but does not itself assess an employee's entitlement under them, or under any change in employment status. (*SOFAC para 22(e)*)
- That when the system did not apply an additional payment for a shift separated by only a seven-hour break 17–18 March 2024., Ms Wright's team escalated the query to their internal Technical Support team to check whether this was a payroll error. The advice returned was that the Award's fatigue provision applies to breaks around overtime, not between two ordinary shifts, and that what had occurred was better characterised as a rostering practice issue for the line manager rather than an unpaid entitlement. (*SOFAC para 24(b)*)

4. Ms Nicole Earl

Ms Nicole Earl worked Payroll, Payroll Transactional Services. She has no personal dealings with the Appellant. Her evidence comes from payroll's records concerning his employment and pay.

This witness will give the following evidence:

- That Ms Earl's review of the Appellant's pay for the fortnight including 30 March 2024 shows he was originally paid an eleventh, additional shift because that public holiday had been processed as "public holiday not required", a payment that sits inside an employee's ordinary contracted hours, which pushed him

over his contracted 80 hours for the fortnight and triggered an automatic hours reduction on his payslip. (SOFAC para 20(a), (d))

- The entry was later corrected by amending it from “public holiday not required” to the discretionary public holiday allowance, which is not counted within ordinary hours. (SOFAC para 20(d))
- On Ms Earl’s evidence, once that correction is understood, the Appellant has in fact been paid for that public holiday, and the confusion is explained by how the two different payments appear (or fail to appear) on a payslip. (SOFAC para 20(e)-(f))
- With respect to the issue the Appellant separately raised the earlier date of 10 April 2023, Ms Earl’s evidence is that he worked a night shift that day which, under the Award’s “majority of the shift” rule, fell to be treated as falling on the following (non-holiday) day, so no public holiday entitlement arose, and because no AVAC was ever submitted seeking the discretionary allowance for that date either, nothing further is payable in respect of it. (SOFAC para 20(a))
- That from the roster, the Appellant’s break between two shifts 17–18 March 2024 was only seven hours, that he was rostered on ordinary hours rather than overtime at the time, and that he took paid sick leave on 19 March 2024. (SOFAC para 22(a), (c))
- That From a review of the Appellant’s MyHR leave record (leave form reference 15480560, for the period 20–27 February 2024), Ms Wright confirms the Appellant uploaded his Special Pandemic Leave application together with a supporting attachment on 20 February 2024 at 11:41am. (SOFAC para 14(c), (e))
 - Ms Taylor declined the application the next day, 21 February, on the stated basis that a minimum five-day period of leave was required. (SOFAC para 14(d))
 - The Appellant resubmitted the same application on 28 February, and it was declined again on 29 February for want of an attached statutory declaration or evidence of a positive test. (SOFAC para 14(d))
 - On payroll’s own review of the system’s attachment history, however, the supporting document had in fact been attached from the original 20 February submission onward, meaning the second decline also appears to have been made in error. (SOFAC para 14(e)-(f))
 - The Appellant resubmitted the same material again on 29 February 2024, and it was approved that day by the delegate and manager, he was on leave, and continued to be paid, throughout the period this was being sorted out. (SOFAC para 14(g))
 - Ms Wright had no knowledge of a “safety mandate” the Appellant appears to associate with a 2006 ombudsman report about rest breaks
 - the timing of Ms Reese’s May 2024 email relative to the Appellant’s PID is an HR matter outside payroll’s own records.